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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

CSAA INSURANCE EXCHANGE; and

Does 1 through 50, inclusive,
DEFENDANTS

Case No.: CGC-25-631802

Dept. 302

Judge: Hon. M. Quinn

**NOTICE UNDER CCP SECTION
128.7(c)(1): SAFE-HARBOR LETTER
RE DEFENDANT'S ANTI-SLAPP
REPLY (FILED MAY 6, 2026)**

Hearing: May 13, 2026, 9:00 a.m.

Date of letter: May 8, 2026

I. PURPOSE AND AUTHORITY

1 This letter constitutes notice under Code of Civil Procedure section 128.7(c)(1) that Plaintiff Fran-
2 ciscus Dylan Rosario has identified specific factual contentions lacking evidentiary support and
3 legal contentions not warranted by existing law, or by a nonfrivolous argument for the extension,
4 modification, or reversal of existing law, in Defendant CSAA Insurance Exchange's Anti-SLAPP
5 Reply filed May 6, 2026 in CGC-25-631802.

6 CCP section 128.7(b) provides that by presenting a pleading, motion, or other paper to the Court,
7 an attorney or unrepresented party certifies to the best of the person's knowledge, information, and
8 belief, formed after an inquiry reasonable under the circumstances, that: (1) the paper is not being
9 presented primarily for an improper purpose; (2) the claims, defenses, and other legal contentions
10 therein are warranted by existing law or by a nonfrivolous argument for the extension, modification,
11 or reversal of existing law or the establishment of new law; and (3) the factual contentions have
12 evidentiary support or, if specifically so identified, are likely to have evidentiary support after a
13 reasonable opportunity for further investigation or discovery.

14 CCP section 128.7(c)(1) requires that a motion for sanctions under section 128.7 "shall be served as
15 provided in Section 1010, but shall not be filed with or presented to the court unless, within 21 days
16 after service of the motion, or any other period as the court may prescribe, the challenged paper,
17 claim, defense, contention, allegation, or denial is not withdrawn or appropriately corrected."

18 This letter is the section 128.7(c)(1) safe-harbor notice. It is served on defense counsel; it is not
19 filed with the Court at this time.

II. IDENTIFIED CONTENTIONS LACKING EVIDENTIARY SUPPORT OR LEGAL WAR- RANT

20 The following contentions in Defendant's Anti-SLAPP Reply (filed May 6, 2026) are identified as
21 lacking evidentiary support or as not warranted by existing law or a nonfrivolous argument for its
22 extension, modification, or reversal:

1 **A. Standing Argument: Ignoring Bus. and Prof. Code Section 17204 and *Zhang v. Superior***
2 ***Court***

3 Defendant's Reply asserts or implies that Plaintiff lacks standing to bring the UCL cause of action.
4 This contention ignores the plain text of Business and Professions Code section 17204, which
5 confers standing on "any person who has suffered injury in fact and has lost money or property as a
6 result of the unfair competition." It further ignores *Zhang v. Superior Court* (2013) 57 Cal.4th 364,
7 which expressly holds that Insurance Code section 790.03(h) violations are available as predicates
8 for a UCL section 17200 claim. Plaintiff has pleaded injury in fact (loss of insurance policy benefits
9 through premature denial; compelled litigation costs) and has standing under section 17204. The
10 standing challenge in the Reply lacks evidentiary support and is not warranted by existing law.

11 **B. Fee Prayer of \$10,218.00 First Raised on Reply**

12 Defendant's Reply introduces for the first time a fee prayer of \$10,218.00 in connection with
13 the anti-SLAPP motion. This fee prayer was not included in the original moving papers filed
14 April 9, 2026 (seqs 015 to 018). Raising a specific monetary demand for the first time on Reply
15 violates CCP section 1005(b), which requires that the notice of motion state the nature of the order
16 being sought; the opposing party is entitled to notice of the relief sought in the moving papers
17 so that the opposition can address it. The fee prayer raised on Reply deprives Plaintiff of the
18 opportunity to oppose it in the ordinary course. This contention is not warranted by existing law
19 and is procedurally improper.

20 **C. Characterization of FAC Paragraph 22F as Gravamen**

21 Defendant's Reply characterizes FAC paragraph 22F as the "gravamen" of Plaintiff's action. This
22 characterization misapplies *Baral v. Schnitt* (2016) 1 Cal.5th 376. Under *Baral*, the anti-SLAPP
23 analysis requires the court to determine whether any particular claim (or claim within a mixed
24 cause of action) arises from protected activity. *Baral* does not authorize a party to select a single
25 paragraph from a multi-paragraph cause of action and declare it the "gravamen" of the entire
26 action while ignoring the remaining allegations. The FAC pleads insurer conduct spanning from

1 the February 2021 claim denial through the present, with multiple independent bases for each cause
2 of action. The characterization of paragraph 22F as the gravamen is a factual contention lacking
3 evidentiary support and a legal contention not warranted by *Baral* or any other existing authority.

III. DEMAND

4 Pursuant to CCP section 128.7(c)(1), Plaintiff demands that Defendant withdraw or appropriately
5 correct each of the identified contentions (Sections II.A, II.B, and II.C above) within twenty-one
6 (21) days of service of this letter, that is, by May 29, 2026.

7 If the identified contentions are not withdrawn or appropriately corrected by May 29, 2026, Plain-
8 tiff will file a motion for sanctions under CCP section 128.7(c)(2) with the Court, together with
9 supporting evidence demonstrating that the identified contentions lack evidentiary support and are
10 not warranted by existing law or a nonfrivolous argument for its extension, modification, or rever-
11 sal.

IV. RESERVATION OF RIGHTS

12 This safe-harbor letter addresses specific contentions in the May 6, 2026 Reply. Plaintiff reserves
13 all rights to identify additional contentions in other defense filings that may warrant section 128.7
14 notice. This letter does not constitute a waiver of any claim or right.

V. PROOF OF SERVICE

15 This safe-harbor letter is served on May 8, 2026, by electronic mail, on the following counsel of
16 record for Defendant CSAA Insurance Exchange:

17 Tyler J. O'Connell, Esq.
18 Mark G. Tapp, Esq.
19 Mason Schubert, Esq.
20 Sarah J. Blithe, Esq.
21 Porter Scott, A Professional Corporation
22 350 University Avenue, Suite 200
23 Sacramento, California 95825

24 Electronic service addresses: toconnell@porterscott.com; mtapp@porterscott.com; mschubert@porterscott.com;
25 sbliithe@porterscott.com

1 Service is made pursuant to CCP section 1010.6 and the Consent to Electronic Service on file in
2 this case (seq 009, filed March 6, 2026).

3 _____
4 I declare under penalty of perjury under the laws of the State of California that the foregoing is
5 true and correct and that this safe-harbor letter was served as described in Section V above.

6 Executed on May 8, 2026, at San Francisco, California.

7 By:

A handwritten signature in blue ink, appearing to read 'Franciscus Dylan Rosario', with a stylized flourish at the end.

8
9 Franciscus Dylan Rosario, Plaintiff in Pro Per

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11 Rohnert Park, CA 94928

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